

9:01 3	24CV442703	<i>Raiden Nguyen, et al.</i> v. <i>Young Men’s Christian Association of Silicon Valley, et al.</i>	Order on Compromise of Minor's Claim Before the Court is a Petition filed on May 4, 2026 by Hoang Minh Nguyen (the “Petitioner”), who is the Parent and Guardian ad item of Raiden Nguyen, a minor, for an Order Approving a Compromise of Claim or Action or Disposition of Proceeds of Judgment for Minor (the “Petition”). The Petition is well grounded in the law, well supported by the facts, and reasonable in all respects. The Court finds that all the relief sought is in the best interests of the minor Raiden Nguyen. Accordingly, the Petition is GRANTED in all respects. After this hearing, the Court will sign and file the Proposed Order that was prepared and filed with this Petition on May 4, 2026, specifically: Order Approving Compromise of Claim or Action or Disposition of Proceeds of Judgment for Minor. SO ORDERED.
9:01 4			
9:01 5			
9:00 1	21CV381377	<i>Estate of Raul Braganza Rivero, et al.</i> v. <i>BMW of North America d/b/a BMW Motorrad, et al.</i>	Order on Defendant BMW AG’s Demurrer to the Complaint See Line 1 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal order.

9:00 2	24CV449202	<i>Wells Fargo Bank, N.A.</i> v. <i>John S. Campbell</i>	Order on Plaintiff's Motion for Judgment on the Pleadings against Defendant John S. Campbell As the moving party has notified the Court that it withdraws this motion, this motion is hereby OFF CALENDAR. SO ORDERED.
9:00 3	25CV459110	<i>Capital One, N.A.</i> v. <i>Sarahi Gomez</i>	Order on Plaintiff's Motion for Judgment on the Pleadings against Defendant Sarahi Gomez See Line 3 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal order.
9:00 4	23CV422452	<i>Ricardo Enrique-Daniel, et al.</i> v. <i>Estate of Patricia Basquez, et al.</i>	Order on Plaintiff's Motion to Compel Defendant to provide Code-Compliant Responses to Form Interrogatories, Set One, and for Sanctions See Line 4 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal order.
9:00 5	23CV422452	<i>Ricardo Enrique-Daniel, et al.</i> v. <i>Estate of Patricia Basquez, et al.</i>	Order on Plaintiff's Motion to Compel Defendant to provide Code-Compliant Responses to Requests for Production of Documents, Set One, and for Sanctions See Line 5 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal order.

9:00 6	23CV422452	<i>Ricardo Enrique-Daniel, et al.</i> <i>v.</i> <i>Estate of Patricia Basquez, et al.</i>	Order on Plaintiff's Motion that the Truth of All Specified Facts in the Requests for Admission, Set One, be deemed Admitted by Defendant, and for Sanctions See Line 6 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal order.
9:00 7	25CV461206	<i>Beverly Ann Land</i> <i>v.</i> <i>Ford Motor Company, et al.</i>	Order on Plaintiff's Motion for Leave to File First Amended Complaint As the moving party has notified the Court that it withdraws this motion, this motion is hereby OFF CALENDAR. SO ORDERED.
9:00 8	25CV461390	<i>Shashank Singh</i> <i>v.</i> <i>Hyundai Motor America, et al.</i>	Order on Defendant's Motion to Compel Arbitration and Stay Civil Action See Line 8 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal order.
9:00 9			
9:00 10			
9:00 11			
9:00 12			
9:00 13			

9:00 <u>14</u>			
9:00 <u>15</u>			

Line 1

Case Name: *Estate of Raul Braganza Rivero, et al. v. BMW of North America d/b/a BMW Motorrad, et al.*

Case No.: 21CV381377

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant Bayerische Motoren Werke AG (“BMW AG”) demurs to the Complaint filed by the Estate of Raul Braganza Rivero, Carla Gardner, Angelica Rivero, and Raphael Rivero (collectively, the “Rivero Plaintiffs”) because the Complaint, and each cause of action alleged therein, is time barred as to any allegations against BMW AG. Notice of Demurrer (the “Demurrer”) at 1:27-2:2 (filed: April 6, 2026).

The Demurrer came on for hearing on June 3, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

I. Factual Allegations

On February 23, 2019, Raul Braganza Rivero (Decedent) purchased a new 2019 BMW R1250GSW, vehicle identification number WB10J530XKZF77624 (the “SUBJECT MOTORCYCLE”), from a dealer located at 1990 W. San Carlos St., San Jose, CA 95128. (Complaint ¶ 9)

A month later, while driving the Motorcycle, the front wheel suddenly failed causing Mr. Rivero’s crash. Mr. Rivero was rushed to a nearby hospital but was pronounced dead on arrival. (Complaint ¶¶ 11, 12)

BMW brand motorcycles, including the Subject Motorcycle, have had a known problem with insufficient spoke tension that has caused other catastrophic wheel failure crashes. (Complaint ¶¶ 13, 14) BMW issued an international service campaign regarding the spoke detachment problem but did not issue a recall before Decedent’s crash. Nor did BMW warn Decedent of the potential wheel failure. (Complaint ¶ 15)

Plaintiffs filed the Complaint in this action on March 26, 2021, alleging causes of action for (1) negligence, (2) products liability – failure to warn, (3) products liability – design defect, (4) products liability - manufacturing defect, (5) products liability – breach of warranty, and (6) wrongful death.

II. Legal Standard

“The party against whom complaint or cross-complaint has been filed may object,